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FACULTY OF LAW

LAW OF EVIDENCE

TOPIC: — PRIVILEGE

By **Proviso (b) to Section 1 of the Evidence Act, 2011**, a fact may be relevant to a matter but would otherwise be excluded if some other provisions of the Act disallow such evidence to be given in judicial proceedings. Privilege and Estoppel provide perfect examples of such scenario.

PRIVILEGE

Generally, every person is competent to give evidence before a court and may be compellable, but under certain circumstances, a person may be able to claim privilege from answering certain questions or from adducing certain pieces of evidence or even from producing a relevant document. Privilege is therefore a rule of exclusion which prevents certain classes of evidence to be adduced by reason of statutory privilege. A witness may claim the privilege or his counsel may do so on his behalf. Sometimes, the Judge may direct a witness not to answer a particular question.

The rationale behind the rule of privilege is to protect state security or the sanctity of marriage or the privacy of an individual. Another reason for the existence of this rule is the protection of public policy and morality.

There is a paucity of reported cases on this area of the law and this is attributable to the fact that most claims for privileges are usually by way of interlocutory applications which do not metamorphose into appellate grounds of challenge of such decisions.

The Evidence Act in various sections clearly provides for the exclusion of privileged pieces of evidence. Basically, the law has categorized Privilege into two broad classes namely: State Privilege and Private Privilege.

State Privilege relates to affairs of state, judicial and other official information as well as information leading to the detection of crimes. The justification for excluding evidence on these matters is to protect the security of the state and the good administration of public affairs and justice.

Private Privilege is the privilege which protects from disclosure matters which affect a person in his private capacity. Such a person may be the witness in person or a person testifying on his behalf.

There are two important distinctions between a State privilege and Private privilege. The first is that private privilege may be waived by the person to whom it belongs or with his consent by his

agent. When so waived, the protected fact may be disclosed in evidence and no adverse presumption shall be drawn from non-waiver of such privilege. But on the other hand, a State privilege is hardly waived in the interest of public security or policy.

The second difference between them is that when the subject-matter of a private privilege is a document and that document or secondary evidence of it has been obtained independently by the opposite party, such evidence is admissible. Thus, in **Rumpling v. DPP** (1964) AC 814, a husband who was charged with murder wrote a letter to his wife in which he confessed the crime to her. This letter was intercepted on the way and it eventually got into the hands of the prosecution. It was held by the House of Lords that it could be received in evidence as part of the prosecution's case, even though it was a privileged communication between spouses. The above is not the case with State privilege as a privileged document remains inadmissible for all purposes even if it gets into the hands of the adverse party. See **Cain v. Cain** (1961) 1 WLR 1469.

STATE PRIVILEGE

Under the Evidence Act, 2011, there are three instances of State privilege which would be discussed hereunder.

(a) Affairs of State:

The first provision under this head will be found in **Section 190 of the Evidence Act**. It provides that subject to any direction of the President or the Governor of a State where the records are in the custody of a State, no one shall be permitted to produce any unpublished official records relating to the affairs of State, or to give any evidence derived from such record except with the permission of the officer at the head of the Ministry or Agency concerned who shall give or withhold such permission as he thinks fit. The best a Judge can do is to examine such document alone in chambers.

The second provision under this head is contained in **Section 191 of the Act**. According to it, no public officer shall be compelled to disclose communications made to him in official confidence, when he considers that the public interest would suffer by the disclosure. Thus, in **Moronu v. Benson** (1966) NMLR 66, it was held that this section precludes the court from compelling a public officer to disclose communications made to him in official confidence.

The final provision under this head is **Section 243 of the Evidence Act, 2011 which is similar to Section 220 of the repealed Evidence Act**. According to subsection (1) of section 243, a Minister, or in respect of matters to which the executive authority of a State extends, the Governor or any person nominated by him, may in any proceedings object to the production of documents or request the exclusion of oral evidence when after consideration he is satisfied that the production of such document or the giving of such oral evidence is against public interest. Under **subsection (2)** thereof, the objection mentioned above shall if taken before trial, be by affidavit, or if at the hearing, it shall be by certificate produced by a public officer. In **Section 220(2) of the repealed**

Evidence Act, it was provided that an objection so taken under the section shall be conclusive and the court has no power to do otherwise than to close its eyes to the document or evidence objected against. Note that the Supreme Court of Nigeria in **A.G. Western Nigeria v. The African Press** held that this provision is in conflict with **Section 22 of the 1963 Constitution** which was repealed in **Section 33 of the 1979 Constitution** and is currently contained in **Section 36(4) of the 1999 Constitution as amended** on the right to fair hearing. See also **Maja (Jnr) & Sons Ltd v. United African Co. of Nig. Ltd** (1971) 1 NMLR 157; **Apampa v. Balogun** (unreported).

It is heart-warming that **subsection (3) of Section 243 of the Evidence Act, 2011** has fully taken the above judicial decisions into consideration when it provides as follows: “The Court shall have a discretion whether or not to uphold any such objection and may in determining how to exercise its discretion, inspect such documents or be informed as to the nature of the oral evidence to which the objection relates.”

Note generally that the above provisions on State Privilege may just be in conflict with the provisions of the recently enacted Freedom of Information Act.

(b) Judicial disclosures: By **Section 188 of the Evidence Act, 2011**, no justice, judge or presiding officer of a superior court of law shall be compelled to answer any question as to his own conduct in court or as to anything which came to his knowledge in court in his capacity as a judge. There is a similar privilege for magistrates or other judicial officers before whom a proceeding is being held, but in their case, they could be compelled upon a special order of the High Court. Note that this privilege of judicial officers does not extend to other matters which occurred in their presence whilst acting in their official judicial capacities.

(c) Information as to the Commission of Offences: According to **Section 189 of the Evidence Act, 2011**, no Magistrate, police officer or any other public officer authorized to investigate or prosecute offences under any written law shall be compelled to disclose the source of any information as to the commission of an offence. In the same vein, officers employed in or about the business of any branch of the public revenue cannot be compelled to disclose the source of any information as to the commission of any offence against the public revenue. In **R v. Hardy** (1794) 24 How. St. Tr 808, it was held that by virtue of this provision, the name of an informant or the person to whom the information was given, or the nature of the information or any other question as to the channel of its communication are protected from disclosure in evidence. Note that the production of the source of information may be allowed if required to establish innocence in a criminal trial or if otherwise authorized by the Freedom of Information Act.

PRIVATE PRIVILEGE

(a) Communications between spouses: **Sections 182(3) and 187 of the Evidence Act, 2011** clearly provide that both husband and wife cannot be compelled to disclose any communication

made during the subsistence of their marriage except there is prior consent by the person who made it or by that person's representative in interest.

(b) Production of title Deeds and other documents: A witness who is not a party in a suit cannot be compelled to produce his title deeds to any property nor can he be compelled to produce any document by virtue of which he holds any property on pledge or on mortgage or any document which might tend to incriminate him, unless he has agreed in writing to produce them with the person seeking the claims. See **Section 184 and 185 of the Evidence Act, 2011**. By **Section 185**, this privilege extends also to a person who is in possession of another person's documents where the said other person is entitled to privilege, unless he secures the consent of that other person. For instance, if A is holding the Deeds of B who is entitled to privilege not to produce them in court, A cannot be compelled to produce those deeds of B in his possession without the consent of B.

(c) The privilege against self-incrimination: **Section 183 of the Evidence Act, 2011** provides that no one is bound to answer any question if the answer thereto would in the opinion of the court have the tendency to expose the witness or the wife or husband of the witness to any criminal charge or any penalty or forfeiture. It is always the court which will decide whether the answer to a question asked which will decide whether the witness or his spouse to a criminal charge, forfeiture or penalty. Note that this privilege does not prevent a witness from entering the witness box to be sworn and then commence his testimony. It is only applicable to the elicited answers which are capable of incriminating the witness. Note however that this privilege is subject to the following exceptions:

- i) Where the witness is an accused standing trial in the matter, he may be asked and is bound to answer any question in cross-examination notwithstanding that it would tend to incriminate him.
- ii) No one is excused from answering any question only because the answer may establish or tend to establish that he owes a debt or is otherwise liable to any civil suit either at the instance of the Federal, State or Local Government or any other person.
- iii) In an inquiry, witnesses are required by the direction of the Attorney-General to answer all questions put to them.

(d) Legal Professional Communications: A legal practitioner is not allowed to disclose any communication made to him in the course and for the purpose of his employment as a lawyer by or on behalf of a client, unless with the express consent of the client. See **Section 192 of the Evidence Act, 2011**. In the same vein, a legal practitioner is not permitted to disclose the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment. He must not disclose any professional advice he has given to his client in the course of such employment. This privilege is so fundamental that it even applies to interpreters and clerks of legal practitioners. What is more, the privilege subsists even after the lawyer had ceased to be a lawyer to the client.

Note that the principle upon which this privilege is based was stated by **Holden, J.** in **Horn v. Rickard** (1963) 2 All NLR 40 at 41 thus: “Every client is entitled to feel safe when making disclosures to his solicitor or counsel, and there are cases establishing firmly that counsel cannot be called to give any evidence which would infringe the client’s privilege of secrecy.”

This privilege is for the client and only he can waive it, and not the counsel. The privilege is subject to two main exceptions namely: (1) any communication made in furtherance of any illegal purpose is not privileged; (2) any fact observed by a legal practitioner in the course of his employment showing that any crime or fraud has been committed since the commencement of his employment.

(e) Doctor and Patient: There is no provision in the Evidence Act as to privilege in respect of communications made between a doctor and his patient. In other words, even though medical ethics refrain doctors from disclosing information obtained from patients to third parties, such ethics do not amount to legal privilege. What this means is that a doctor could be asked to disclose information he obtained in secret from his patients and he is legally obliged to disclose it.

(f) Priest and Penitent: There is also no provision in the Evidence Act protecting communications between a priest and a penitent and such communications are therefore not privileged. The predominant view is that even though in strict law the privilege does not exist, a priest should not be required to give evidence as to confessions made to him. The trial Judge should be able to exercise his discretion on whether or not to allow the disclosure of such confession whenever such occasion arises.

(G) Statements Made Without Prejudice: This privilege mainly applies in civil cases. It is a common practice for parties to resort to alternative dispute resolution methods to settle their disagreements and in course of such meetings or negotiations, parties are free to make admissions and concessions which are not expected to haunt them subsequently should the process break down and the matter finds its way to the court. This privilege, therefore prevents parties from using admissions and statements earlier made in such settlement process against the maker. Such statements may be oral or in writing and may be marked ‘without prejudice’.

Section 196 of the Evidence Act codifies this privilege. Statements made without prejudice can only be tendered with the consent of both parties. See **Fawehinmi v. NBA** (No. 2) (1989) 2 NSCC 43. Note that the mere marking of a document ‘without prejudice’ does not confer this privilege on such a document unless it is shown that it was made in course of a settlement or negotiation between the parties. Thus, in **Omisade v. Martins** (unreported) it was held that a contract headed ‘without prejudice’ does not make the document privileged. Conversely, the failure to mark a document ‘without prejudice’ will not deny it the privilege if it is shown that it was made in course of settlement or negotiation between the parties.